

24PSCV00568 24PSCV00568

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-08-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CIT%2C6%2C08%2F24%2F2026

Source SHA-256: 890f36d202267b1ae583bc8b44f7cb2e81a2019c52dfa061dab88ef4214244c7

Case Number: 24PSCV00568 Hearing Date: August 24, 2026 Dept: 6

CASE NAME:

Scott DeSmet,

Conservator of the Person and Estate of Gregory L. DeSmet Sr and Trustee of the

Gregory L. DeSmet Trust v. Vicki Brown aka Vicki Brown-Desmet, et al.

Defendants' Motion to Compel the

Deposition of Nonparty Witness Rob Hauducoeur and His Production Documents, or

in the Alternative to Exclude His Testimony at Trial

TENTATIVE

RULING

The Court summarily DENIES Defendants' Motion to Compel the Deposition

of Nonparty Witness Rob Hauducoeur and His Production Documents, or in the

Alternative to Exclude His Testimony at Trial without prejudice.

The Court DENIES

Plaintiff's request for monetary sanctions against Defendants' counsel Daniel

R. Sallus and Adam G. Carpinelli.

Plaintiff

is ordered to give notice of the Court's ruling within five calendar days of

this order.

BACKGROUND

This is a

business dispute. On February 23, 2024, plaintiff Scott DeSmet, Conservator of

the Person and Estate of Gregory L. DeSmet Sr and Trustee of the Gregory L. DeSmet Trust (Plaintiff) filed this action against defendants Vicki Brown aka Vicki Brown-DeSmet (Vicki), Victoria Marie Brown aka Victoria Marie Brown-DeSmet,¹ Gregory L. DeSmet Jr. (Gregory Jr.), Al Snow (Snow), DPI Labs, Inc. (DPI Labs), DeSmet Property Investments, LLC (DeSmet Property), Sowing Seeds for Life (Sowing Seeds), Hillsborough Accounting Services (Hillsborough) (collectively, Defendants), and Does 1 through 100, alleging causes of action for fraud and conspiracy to commit fraud, breach of fiduciary duty, and financial elder abuse and conspiracy to commit financial elder abuse.

On July 11, 2024, following the Court's sustaining of the demurrer to the complaint, Plaintiff filed the operative First Amended Complaint (FAC) against the same Defendants for fraud and conspiracy to commit fraud, two counts of breach of fiduciary duty, and financial elder abuse and conspiracy to commit financial elder abuse.

On July 22, 2026, Defendants moved to compel the deposition of non-party witness Rob Haudocoeur and his production documents, or in the alternative to exclude his testimony at trial. On August 13, 2026, Plaintiff opposed the Motion. Defendants did not reply to Plaintiff's Opposition.

LEGAL STANDARD

For parties to the action

(a)

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(b) A motion under subdivision (a) shall comply with both of the following:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

(Code Civ. Proc., § 2025.450, subds. (a)-(b).)

For non-parties

(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.

(c) Notice of this motion shall be given to all parties and to the deponent either orally at the examination, or by subsequent service in writing. If the notice of the motion is given orally, the deposition officer shall direct the deponent to attend a session of the court at the time specified in the notice.

(Code Civ. Proc., § 2025.480, subds. (a)-(c).)

PRELIMINARY ISSUES

Plaintiff's Opposition acknowledges its untimeliness. (Opp., 2:16-19.) The Court exercises its discretion to consider Plaintiff's Opposition but admonishes Plaintiff to comply with the Code of Civil Procedure going forward. (See Cal. Rules of Court, rule 3.1300, subd. (d); *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

The Court also notes that Plaintiff's Opposition misquotes from Code of Civil Procedure section 2023.010, subdivision (i). Specifically, Plaintiff's Opposition reads, "Failing to confer in person, by telephone, or by letter with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made." (Opp., 5:9-13, bold added.) Code of Civil Procedure section 2023.010, subdivision (i), actually reads, "Failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made." (Code Civ. Proc., § 2023.010, subd. (i), bold added.) The Court admonishes Plaintiff's counsel to accurately quote from legal authorities going forward.

DISCUSSION

"A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." (Cal. Rules of Court, rule 3.1346, italics added.) "Notice of this motion shall be given to all parties and to the deponent either orally at the examination, or by subsequent service in writing. If the notice of the motion is given orally, the deposition officer shall direct the deponent to attend a session of the court

at the time specified in the notice.” (Code Civ. Proc., § 2025.480, subd. (c), italics added.)

Plaintiff’s

Opposition correctly notes that Defendants did not give notice of this Motion on the nonparty deponent, Mr. Haudocoeur. (See Motion, p. 41 of pdf.) Plaintiff’s Opposition also correctly notes that Defendants did not give notice of the underlying deposition on Plaintiff or any other parties. (See Sallus Decl., Ex. B; Code Civ. Proc., § 2025.240, subd. (a) [notice of deposition must given to all parties who have appeared in the action].) The Court therefore lacks jurisdiction to consider the Motion, and on that basis summarily DENIES it without prejudice. (See *Harris v. Board of Ed. of City and County of San Francisco* (1957) 152 Cal.App.2d 677, 680 [courts lack jurisdiction to rule on motions where requisite notice is not given].)

The Court also

DENIES Plaintiff’s request for monetary sanctions against Defendants’ counsel Daniel R. Sallus and Adam G. Carpinelli. The Court finds that Defendants did not abuse the discovery process but made technical errors with respect to the deposition of Mr. Haudocoeur and the service of this motion. Further, Plaintiff’s counsel repeatedly states that he does not represent the deponent. Thus, counsel would not be entitled to any sanctions for the failure to meet and confer with the deponent prior to bringing this motion. The Court finds that circumstances exist making the imposition of sanctions unjust.

CONCLUSION

The Court summarily DENIES Defendants’ Motion to Compel the Deposition of Nonparty Witness Rob Hauducœur and His Production Documents, or in the Alternative to Exclude His Testimony at Trial without prejudice.

The Court DENIES

Plaintiff’s request for monetary sanctions against Defendants’ counsel Daniel R. Sallus and Adam G. Carpinelli.

Plaintiff is ordered to give notice of the Court’s ruling within five calendar days of this order.